

# Albizzi — De inconstantia in iure, Tract. I De inconstantia in fide, Cap. X De Schismaticis (Amsterdam 1683)

Latin–English parallel text: Argumentum and Summarium 1–12 (printed 45); nn. 1–12 (printed 46–47); n. 21 (printed 49); n. 32 (printed 50); n. 36 (printed 51)

| <i>Latin</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <i>English</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
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| <b>BLOCK A — Cap. X, Argumentum and Summarium 1–12 (printed 45)</b>                                                                                                                                                                                                                                                                                                                                                                                                                  | <b>BLOCK A — Cap. X, Argumentum and Summarium 1–12 (printed 45)</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>CAPVT X.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | <b>CHAPTER X.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| ARGVMENTVM. De Schismaticis: Quis dicatur Schismaticus. Quis inobediens Papæ. Quando Papæ Schismatico non liceat obedire. An Schismaticus dici possit, qui recedit ab obedientia Episcopi. An Schisma possit esse sine Hæresi. An Schismaticus recipiendus sit ab Ecclesia, & quomodò recipiatur. De pœnis Schismaticorum. An Constitutiones Apostolicæ comprehendant Orientales. An filij Schismaticorum priuentur bonis, & inhabiles reddantur ad honores, & dignitates remissiue. | ARGUMENT. On Schismatics: Who is called a schismatic. Who is disobedient to the Pope. When it is not lawful to obey a schismatic Pope. Whether he can be called a schismatic who withdraws from obedience to his Bishop. Whether there can be schism without heresy. Whether a schismatic is to be received back by the Church, and in what manner he is received. On the penalties of schismatics. Whether the Apostolic Constitutions comprehend the Orientals. Whether the sons of schismatics are deprived of their goods, and rendered incapable of honours and dignities, by reference. |
| SVMMARIVM.                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | SUMMARY.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 1. Schismaticus quis dicatur, & vnde.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 1. Who is called a schismatic, and whence the name.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 2. Vnitas Ecclesiæ in quo consistat, & quomodò scindatur.                                                                                                                                                                                                                                                                                                                                                                                                                            | 2. In what the unity of the Church consists, and how it is torn.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 3. Schismaticus dicitur qui renuit obedire Summo Pontifici vti Papæ, illumque cognoscere in Caput Ecclesiæ.                                                                                                                                                                                                                                                                                                                                                                          | 3. He is called a schismatic who refuses to obey the Supreme Pontiff as Pope, and to acknowledge him as Head of the Church.                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 4. Schismaticus est non solùm qui directa intentione, sed & qui opere, vel effectu se subtrahit ab obedientia Pontificis.                                                                                                                                                                                                                                                                                                                                                            | 4. A schismatic is not only he who withdraws himself from obedience to the Pontiff by direct intention, but also he who does so by deed or by effect.                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 5. Concilium, sine auctoritate Papæ congregantes, vel legitime dissolutum prosequentes, Schismatici sunt.                                                                                                                                                                                                                                                                                                                                                                            | 5. Those who convoke a Council without the authority of the Pope, or continue one lawfully dissolved, are schismatics.                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 6. Schismaticus, in quo differat ab Inobediente.                                                                                                                                                                                                                                                                                                                                                                                                                                     | 6. A schismatic, in what he differs from one who is disobedient.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 7. Inobediens Pontifici sibi infesto, & suspecto, quem tamen credit Caput Ecclesiæ, non est Schismaticus.                                                                                                                                                                                                                                                                                                                                                                            | 7. One disobedient to a Supreme Pontiff hostile and suspect to him, whom nevertheless he believes to be Head of the Church, is not a schismatic.                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 8. Rebellis Papæ, vti Principi temporali, non est Schismaticus.                                                                                                                                                                                                                                                                                                                                                                                                                      | 8. A rebel against the Pope as a temporal Prince is not a schismatic.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

## Latin

9. Negans subiectionem Pontifici, quia probabiliter dubitat de illius canonica electione, an, & quando dici possit Schismaticus.

10. Renuens obedire alteri ex duobus electis Pontificibus, pendente Schisma [1], vsquequò ab Ecclesia definiatur, cui sit obediendum, an, & quando dicatur Schismaticus, & num. sequen.

11. Dubius de valida electione Papæ ab Ecclesia ob eandem dubietatem adhuc non recepti, an, & quando dicatur Schismaticus, & num. seq.

Obedientia homini tanquam Pontifici, & tanquam de fide tali non debetur, donec à tota Ecclesia sit acceptatus.

12. Pontifex legitimus de fide est credendus, qui talis est electus, & ab vniuersali Ecclesia receptus.

Eique obedientia, sine vitio Schismatis, negari non potest.

### BLOCK B — nn. 1–12 (printed 46–47)

**1** TERTIO datur Inconstantia in fide propter Schisma. Nàm Schismaticus est ille, qui inconstans recedit ab vnione Ecclesiæ, & ab ea separatur, *D. Thomas 2. 2. q. 39. art. 1.* & ibi Bannes *in fin.* Abbas Antiquus *in cap. 1. de Schismat. num. 1.* Io: Andr. *num. 3.* Butrius *num. 4.* Diaz *in prax. crimin. Canon. vers. Schismatici cap. 112.* & ibi Ignatius Lopez, Albertin. *in rubr. de Hæret. in 6. q. 11. num. 2.* Simanc. *de Cathol. tit. 58. nu. 1.* Petrus Gregor. *Syntagma Iuris lib. 33. cap. 11. num. 1.* Sanchez *lib. 2. oper. moral. cap. 36.* Sanctarell. *de Hæresi cap. 43. dub. 1.* Farinacc. *eodem tract. qu. 184. §. 1. num. 3.* & nouissimè Macedo *de Clauibus Petri qu. præuia art. 3. assert. 3.* P. del Bene *de Offic. S. Inquisitionis par. 2. dubit. 235. sect. 1. num. 1.* & *sect. 2. nu. 1.*

**2** Cumque vnitas Ecclesiæ in eo consistat, vt vniuersi Fideles eius membra, apto quodam ordine inter se cum Pontifice eius Capite connectantur, scilicet, vt in actionibus spiritualibus ad id corpus pertinentibus in fidei doctrina, cultu Religionis, & in spirituali regimine, Caput in reliqua membra quēdam [2] Principatum habeat, atque illa ex eo pendeant, ipsique subdita sint, P. del Bene

## English

9. One who denies subjection to the Pontiff because with probability he doubts his canonical election, whether and when he can be called a schismatic.

10. One who refuses to obey one of two elected Pontiffs while the schism is pending [1], until it be defined by the Church whom one must obey, whether and when he is called a schismatic, and in the following number.

11. One doubtful about the valid election of a Pope who on account of that same doubt has not yet been received by the Church, whether and when he is called a schismatic, and in the following number.

Obedience is not owed to a man as to a Pontiff, nor as being of faith that he is such, until he has been accepted by the whole Church.

12. He is to be believed as of faith the legitimate Pontiff who has been elected as such and received by the universal Church.

And obedience cannot be denied to him without the vice of schism.

### BLOCK B — nn. 1–12 (printed 46–47)

**1** THIRDLY, there is inconstancy in faith on account of schism. For a schismatic is he who, being inconstant, withdraws from the union of the Church and is separated from it, *D. Thomas 2. 2. q. 39. art. 1.* and there Bañez *in fin.* Abbas Antiquus *in cap. 1. de Schismat. num. 1.* Johannes Andreæ *num. 3.* Butrius *num. 4.* Diaz *in prax. crimin. Canon. vers. Schismatici cap. 112.* and there Ignatius Lopez, Albertin. *in rubr. de Hæret. in 6. q. 11. num. 2.* Simancas *de Cathol. tit. 58. nu. 1.* Petrus Gregorius *Syntagma Iuris lib. 33. cap. 11. num. 1.* Sánchez *lib. 2. oper. moral. cap. 36.* Santarelli *de Hæresi cap. 43. dub. 1.* Farinacci *eodem tract. qu. 184. §. 1. num. 3.* and most recently Macedo *de Clauibus Petri qu. præuia art. 3. assert. 3.* P. del Bene *de Offic. S. Inquisitionis par. 2. dubit. 235. sect. 1. num. 1.* & *sect. 2. nu. 1.*

**2** And since the unity of the Church consists in this, that all the faithful, its members, are bound together among themselves in a certain fitting order with the Pontiff, its Head, namely, that in the spiritual actions pertaining to that body, in the doctrine of faith, in the worship of Religion, and in spiritual government, the Head should have a certain [2] primacy over the remaining members, and that these should depend upon it and be subject to it, P. del

## Latin

*loco citato num. 2. Pueron. in Bulla Cænæ loco infra allegando num. 232.*

Meritò ista vnitas scinditur, dùm Fidelis inconstans non vult se gerere tanquam huiusmodi corporis membrum in aliqua, vel aliquibus spiritualibus actionibus ad hoc Ecclesiæ corpus pertinentibus, aut renuit subesse Pontifici, Sanchez *loco cit. nu. 1.* Sanctarell. *loco citato nu. 2. P. del Bene num. 3.*

**3** Erit ergò Schismaticus ille, qui renuit obedire Summo Pontifici, vt Papa est, nec vult eum cognoscere vt Caput Ecclesiæ, *cap. Concilia 17. distin. Io: de Anan. in rubr. de Schismat. num. 7. Gloss. in cap. 1. de Schismaticis in 6. Bonif. de Vitalin. in Clement. ad nostrum num. 44. de Hæret. cum alijs per Farinacc. d. qu. 184. Sanctarell. & Sanchez loc. cit. Caren. par. 2. de Apostat. & Schismat. tit. 3. §. 10. n. 28. Bordon. in Tribun. cap. 7. nu. 7. P. del Bene loc. cit. nu. 8. Pueron. in Bulla Cænæ cap. 1. num. 228. Bard. in Bulla Cruciatæ par. 1. tract. 2. cap. 4. sect. 2. §. 8. num. 104.*

**4** Quod habet locum in eo, qui non solùm directa intentione se subtrahit ab obedientia Pontificis, sed etiamsi indirectè nimirum effectu, & opere, Gaiet. *in Summ. vers. Schisma, & 2. 2. qu. 39. artic. 1. vers. Ad tertium dubium, & ibi Bannes dub. 1. ad 2. Valen. 2. 2. disp. 3. qu. 15. pun. 1. post tertiam propositionem, Vgolin. de Censuris Papæ reseruat. 2. par. cap. 1. vers. Necnon Schismaticus §. 1. num. 1. vers. 3. Suarez de Censur. disp. 21. P. del Bene loc. cit. num. 11. sect. 2. num. 13. Petr. de Ledesma 2. to. Summæ tract. 3. cap. 12. conclus. 3. Farinac. dicta qu. 184. num. 20. in fine.*

**5** Hinc deducitur, quod qui absque auctoritate Summi Pontificis Concilium generale congregant, vel dissolutum legitimè prosequuntur, Schismatici sunt, Sanchez *loc. cit. nu. 5. Sanctarell. loc. cit. nu. 3. vers. Dico tertio, P. del Bene loc. cit. nu. 13.*

**6** Dixi, qui renuit obedire Pontifici, quatenùs Papa, Schismaticus est: Nàm si quis non obediret Papæ præcipienti aliquid, vt puta, vt arma deponeret, vel alienum restitueret, is propriè non est Schismaticus, sed inobediens, quia licet ei non obediat, recognoscit tamen illum vt Caput Ecclesiæ, Gaiet. *in Summ. vers.*

## English

*Bene loco citato num. 2. Pueroni in Bulla Cænæ loco infra allegando num. 232.*

That unity is deservedly torn when an inconstant member of the faithful is unwilling to bear himself as a member of a body of this kind in one or several of the spiritual actions pertaining to this body of the Church, or refuses to be subject to the Pontiff, Sánchez *loco cit. nu. 1. Santarelli loco citato nu. 2. P. del Bene num. 3.*

**3** He, therefore, will be a schismatic who refuses to obey the Supreme Pontiff as he is Pope, and is unwilling to acknowledge him as Head of the Church, *cap. Concilia 17. distin. Johannes de Ananias in rubr. de Schismat. num. 7. Gloss. in cap. 1. de Schismaticis in 6. Bonif. de Vitalin. in Clement. ad nostrum num. 44. de Hæret. with others through Farinacci d. qu. 184. Santarelli and Sánchez loc. cit. Carena par. 2. de Apostat. & Schismat. tit. 3. §. 10. n. 28. Bordoni in Tribun. cap. 7. nu. 7. P. del Bene loc. cit. nu. 8. Pueroni in Bulla Cænæ cap. 1. num. 228. Bard. in Bulla Cruciatæ par. 1. tract. 2. cap. 4. sect. 2. §. 8. num. 104.*

**4** Which holds in the case of him who withdraws himself from obedience to the Pontiff not only by direct intention, but even if he does so indirectly, that is, by effect and by deed, Cajetan *in Summ. vers. Schisma, & 2. 2. qu. 39. artic. 1. vers. Ad tertium dubium, and there Bañez dub. 1. ad 2. Valencia 2. 2. disp. 3. qu. 15. pun. 1. post tertiam propositionem, Ugolini de Censuris Papæ reseruat. 2. par. cap. 1. vers. Necnon Schismaticus §. 1. num. 1. vers. 3. Suárez de Censur. disp. 21. P. del Bene loc. cit. num. 11. sect. 2. num. 13. Peter of Ledesma 2. to. Summæ tract. 3. cap. 12. conclus. 3. Farinacci dicta qu. 184. num. 20. in fine.*

**5** Hence it is deduced that those who convoke a general Council without the authority of the Supreme Pontiff, or lawfully continue one that has been dissolved, are schismatics, Sánchez *loc. cit. nu. 5. Santarelli loc. cit. nu. 3. vers. Dico tertio, P. del Bene loc. cit. nu. 13.*

**6** I said, he who refuses to obey the Pontiff insofar as he is Pope is a schismatic: For if someone should not obey the Pope enjoining something, as for instance that he lay down his arms, or restore what belongs to another, he is not properly a schismatic, but disobedient, because although he does not obey him, he nevertheless recognizes him as Head of the Church,

## Latin

*Excommunicatio num. 7. Suarez d. disput. 21. sect. 2. nu. 12. Azor. to. 1. lib. 8. cap. 20. q. 4. Vgolin. in Bulla Cænæ, vers. Necnon Schismaticos n. 9. Sanchez dicto cap. 36. num. 3. Sanctarell. loc. cit. num. 4. Layman. tract. 3. cap. 34. num. 4. vers. Duplex, Duard. in Bulla Cænæ lib. 2. can. 1. quæst. 56. num. 16.*

**7** Pariter non iudicaretur Schismaticus ille, qui non obediret Summo Pontifici sibi infesto, vel suspecto, si tamen aliàs credat illum Caput Ecclesiæ: sic tenent omnes supracitati, quibus addo Duard. *d. quæst. 56. num. 16. in fin.* & Macedo *art. 3. Carena. loco cit. num. 30. Farinacc. d. qu. 184. num. 11. P. del Bene num. 6.*

**8** Nec ille, qui non obediret Papæ, vt Principi temporali, nec exhiberet illi subiectionem in Ciuitate dominij temporalis Pontificij, quamuis iste sit Rebellis, Card. de Lugo *de virtute fidei Diuinæ, disp. 25. sect. 3. num. 36. Carena loc. cit. num. 30. Sanchez d. cap. 36. nu. 3. & 4. Farinacc. dicta qu. 184. num. 11. P. del Bene num. 9. Pueron. loc. cit. num. 235.*

**9** Nec ille erit Schismaticus, qui negat Pontifici subiectionem, quia probabiliter dubitat de eius electione legitima, Gaiet. *in Summ. in vers. Schisma, in fin. Petrus de Ledesma concl. 3. Vgolin. eodem §. 1. num. 2. Valent. eadem disp. 3. Sanchez dicto cap. 36. Layman. d. cap. 11. num. 4. vers. Duplex.*

Cæterùm quamuis hæc conclusio eruditissimorum Virorum calculo sit approbata, cum grano tamen salis est intelligenda.

**10** Aut enim sumus in Schismate propter electionem duorum Pontificum, & tunc licita est dubitatio, cui nam sit obediendum vsquequo per Ecclesiam non sit diffinitum, cui sit obediendum, & ideò non erit Schismaticus ille, qui nullum eorum recognoscit in Summum Pontificem: Non enim iste renuit subesse Pontifici, sed huic personæ, quam putat, non esse Pontificem, Simanc. *de Cathol. cap. 56. in fin. Turre-cremata de Ecclesia lib. 4. c. 14. par. 1. cum alijs per Sanctarell. loco citato num. 11. Bordon. tit. de Schismat. qu. 5. num. 8. Pueron. loc. cit. num. 243.*

**11** Aut sumus in Papa vnico electo, sed statim secuta eius electione contingit dubitari, an sit canonicè electus, & propterea ab Ecclesia non recipitur. Et etiam isto casu dicendum est, talem,

## English

Cajetan *in Summ. vers. Excommunicatio num. 7. Suárez d. disput. 21. sect. 2. nu. 12. Azor to. 1. lib. 8. cap. 20. q. 4. Ugolini in Bulla Cænæ, vers. Necnon Schismaticos n. 9. Sánchez dicto cap. 36. num. 3. Santarelli loc. cit. num. 4. Laymann tract. 3. cap. 34. num. 4. vers. Duplex, Duardo in Bulla Cænæ lib. 2. can. 1. quæst. 56. num. 16.*

**7** Likewise he would not be judged a schismatic who did not obey a Supreme Pontiff hostile or suspect to him, provided that he otherwise believes him to be Head of the Church: so hold all those cited above, to whom I add Duardo *d. quæst. 56. num. 16. in fin.* and Macedo *art. 3. Carena loco cit. num. 30. Farinacci d. qu. 184. num. 11. P. del Bene num. 6.*

**8** Nor he who did not obey the Pope as a temporal Prince, nor render him subjection in a City of the Pontifical temporal dominion, although such a man is a rebel, Cardinal de Lugo *de virtute fidei Diuinæ, disp. 25. sect. 3. num. 36. Carena loc. cit. num. 30. Sánchez d. cap. 36. nu. 3. & 4. Farinacci dicta qu. 184. num. 11. P. del Bene num. 9. Pueroni loc. cit. num. 235.*

**9** Nor will he be a schismatic who denies subjection to the Pontiff because with probability he doubts his legitimate election, Cajetan *in Summ. in vers. Schisma, in fin. Peter of Ledesma concl. 3. Ugolini eodem §. 1. num. 2. Valencia eadem disp. 3. Sánchez dicto cap. 36. Laymann d. cap. 11. num. 4. vers. Duplex.*

But although this conclusion has been approved by the reckoning of most learned men, it is nevertheless to be understood with a grain of salt.

**10** For either we are in a schism on account of the election of two Pontiffs, and then the doubt is lawful as to which of them is to be obeyed, until it has been defined by the Church whom one must obey, and therefore he will not be a schismatic who acknowledges neither of them as Supreme Pontiff: for such a man does not refuse to be subject to the Pontiff, but to this person, whom he thinks not to be Pontiff, Simancas *de Cathol. cap. 56. in fin. Torquemada de Ecclesia lib. 4. c. 14. par. 1.* with others through Santarelli *loco citato num. 11. Bordoni tit. de Schismat. qu. 5. num. 8. Pueroni loc. cit. num. 243.*

**11** Or we are dealing with a single elected Pope, but immediately upon his election it happens that it is doubted whether he was canonically elected, and on that account he is not received by the Church. And in this case also it

## Latin

qui cum alijs dubitat de electione valida Papæ, non esse Schismaticum per ea, quæ tradit Suarez *disput. 10. de Summo Pontif. sect. 5. num. 6.* vbi, quod vsquequo Pontifex non sit acceptatus à tota Ecclesia, non est de fide hunc Hominem esse verè Pontificem, & ei esse obediendum.

**12** Aut sumus in Pontifice electo, & ab Vniuersali Ecclesia recepto; tunc quia non solùm probabilis est opinio, sed de fide illum esse legitimum Pontificem, Pueron. *loc. cit. sub nu. 241. vers. Est siquidem.* Nefas est absque vitio Schismatis ei non obedire, latè Card. de Lugo *d. tract. disp. 1. sect. 13. §. 2.*

Imò in supradictis duobus casibus, qui non adhiberet diligentiam in inquirendo, quis sit verus Summus Pontifex, Schismaticus reputaretur, *cap. quoties cordis p. [3] qu. 1. cap. Schisma 28. qu. 1.* & ità docet Gloss. in *verb. Magis*, & in *cap. negligentes 23. quæst. 1. Felin. cap. 1. de Hæret. qu. 13. num. 24. & 25. Soccin. in cap. Fraternitatis, de Schismat. n. 11. Turre-cremata in summ. de Eccles. lib. 4. par. 1. cap. 14. Sanctarell. d. cap. 43. dub. 1. num. 11. in fine.*

## BLOCK C — n. 21 (printed 49)

Cum ergò ferè semper Schismatici sint Hæretici, & si formaliter tales non sint, sunt nihilominus de Hæresi suspecti, *D. Thom. 2. 2. qu. 3. art. 2. ad 3. Gaietan. in summ. in ver. Schisma, Azor. d. cap. 20. q. 4. Sanctarell. loc. cit. num. 7. in fin. & ex nostris Menoch. de præsumpt. lib. 5. præsumpt. 6. num. 24.*

**21** Si quis verò vna cum Schismate crederet, Romanum Pontificem non esse Caput Ecclesiæ, nec Christi Vicarium, vtique esset Hæreticus, Siluester *versic. Schisma nu. 1.* Alphonsus de Castro *aduersus Hæreses lib. 1. cap. 9. Suarez loc. cit. num. 12.* cum alijs per Sanctarell. *loc. cit. nu. 5. Farin. d. q. 184. num. 11.*

## BLOCK D — n. 32 (printed 50)

**32** Quæ multò magis procedunt, quando vnus tantùm se gereret pro Papa, vel Prælato, in aliqua Regione, qui licèt esset Schismaticus, vel nulliter electus, communi tamen reputatione ibi haberetur pro vero Papa, vel Prælato; quia ad validitatē [4] gestorum sufficit communis repu-tatio, *l. Barbarius, ff. de Offic.*

## English

must be said that such a man, who together with others doubts about the valid election of the Pope, is not a schismatic, by reason of what Suárez hands down *disput. 10. de Summo Pontif. sect. 5. num. 6.* where he says that until the Pontiff has been accepted by the whole Church, it is not of faith that this man is truly Pontiff, and that he is to be obeyed.

**12** Or we are dealing with a Pontiff elected and received by the universal Church; then, since it is not only a probable opinion but of faith that he is the legitimate Pontiff, Pueroni *loc. cit. sub nu. 241. vers. Est siquidem.* it is a crime to withhold obedience from him without the vice of schism, at length Cardinal de Lugo *d. tract. disp. 1. sect. 13. §. 2.*

Indeed, in the two cases mentioned above, one who did not employ diligence in inquiring who is the true Supreme Pontiff would be reputed a schismatic, *cap. quoties cordis p. [3] qu. 1. cap. Schisma 28. qu. 1.* and so teaches the Gloss in *verb. Magis*, & in *cap. negligentes 23. quæst. 1. Felinus cap. 1. de Hæret. qu. 13. num. 24. & 25. Soccinus in cap. Fraternitatis, de Schismat. n. 11. Torquemada in summ. de Eccles. lib. 4. par. 1. cap. 14. Santarelli d. cap. 43. dub. 1. num. 11. in fine.*

## BLOCK C — n. 21 (printed 49)

Since, therefore, schismatics are almost always heretics, and if they are not formally such, they are nonetheless suspect of heresy, *D. Thom. 2. 2. qu. 3. art. 2. ad 3. Cajetan in summ. in ver. Schisma, Azor d. cap. 20. q. 4. Santarelli loc. cit. num. 7. in fin.* and among our own writers Menochius *de præsumpt. lib. 5. præsumpt. 6. num. 24.*

**21** But if anyone, together with schism, should believe that the Roman Pontiff is not the Head of the Church, nor the Vicar of Christ, he would assuredly be a heretic, Sylvester *versic. Schisma nu. 1.* Alfonso de Castro *aduersus Hæreses lib. 1. cap. 9. Suárez loc. cit. num. 12.* with others through Santarelli *loc. cit. nu. 5. Farinacci d. q. 184. num. 11.*

## BLOCK D — n. 32 (printed 50)

**32** Which things hold much more when one man alone should bear himself as Pope, or as Prelate, in some Region, who, although he were a schismatic, or invalidly elected, would nevertheless there be held by common reputation for the true Pope or Prelate; because for the validity [4] of acts common repu-tation suffices, *l. Barbarius, ff. de Offic. Prætor.* whose provision holds

**Latin**

*Prætor.* cuius dispositio procedit etiam in Papa, vt dicit Iason. *in d. l. n. 64. Gemin. conf. 8. Greg. XV. dicta decis. 289. num. 4. Ricciull. loco citato num. 15.*

**BLOCK E — n. 36 (printed 51)**

In hanc autem excommunicationem incurrunt non solum Schismatici, qui alium Pseudo-pontificem eligunt, cum hi per antonomasiam Schismatici vocentur, sed etiam qui sine alterius Pontificis electione separant se ab obedientia veri Pontificis, Card. de Lugo *dicta disput. 24. sect. 3. num. 37. vers. His breuiter*, P. Thesaur. *loc. cit. vers. Prima excommunicatio.*

Quinimò addit Card. de Lugo, se credere comprehendi etiam illos, qui subdolè malitiam velare conantes, dicunt, se non negare obedientiam Sedi Apostolicæ, sed huic personæ ob peculiare rationes, postea tamen eius Successori obedientiam præstituros: & propterea esse addita illa verba: *Qui se à nostra, & cuiusuis Pontificis pro tempore existentis obedientia subtrahunt.*

**English**

even in the Pope, as Iason says *in d. l. n. 64. Geminianus conf. 8. Gregory XV. dicta decis. 289. num. 4. Ricciulli loco citato num. 15.*

**BLOCK E — n. 36 (printed 51)**

Now into this excommunication there fall not only schismatics who elect another pseudo-pontiff, since these are called schismatics by antonomasia, but also those who, without the election of another Pontiff, separate themselves from obedience to the true Pontiff, Cardinal de Lugo *dicta disput. 24. sect. 3. num. 37. vers. His breuiter*, P. Thesaur. *loc. cit. vers. Prima excommunicatio.*

Nay more, Cardinal de Lugo adds that he believes there are comprehended also those who, cunningly trying to veil their malice, say that they do not deny obedience to the Apostolic See, but to this person for particular reasons, while nevertheless they will afterwards render obedience to his Successor: and that for this reason those words were added: *Who withdraw themselves from obedience to us and to any Pontiff for the time being.*